

IPR UNIT - 1

Made from the IPU recommended textbook *Intellectual Property: The Law of Trademarks, Copyrights, Patents and Trade Secrets, Fourth Edition, by Deborah E. Bouchoux.*

Unit 1: Understanding & Overview of IPR Regime & Patents

Topic 1: Introduction to Intellectual Property Rights (IPR)

- **Definition of Property:** Property is broadly classified into three distinct types:
 1. **Real Property:** Refers to land and anything permanently attached to it, like buildings (real estate).
 2. **Personal Property:** Refers to tangible, movable items such as jewelry, cars, or furniture.
 3. **Intellectual Property (IP):** Refers to the creations of the human mind or intellect. It is an intangible asset that protects the results of human creative endeavor, such as inventions, literary and artistic works, designs, symbols, names, and images used in commerce.
- **Example:** A novelist's book, a musician's song, a tech company's patented software algorithm, and the Coca-Cola brand name are all forms of intellectual property.
- **What is an IPR?** [PYQ]
 - Intellectual Property Rights (IPR) are the legal rights granted to creators and inventors to protect their intellectual creations for a specific period.
 - These rights are exclusive, meaning they allow the creator to prevent others from using, making, or selling their creation without permission.
 - Essentially, IPR treats intangible creations of the mind as protectable assets, similar to how tangible real or personal property is protected.

Topic 2: Need and Rationale for Protection of IPR

- **Why is IPR Needed in a Society?** [PYQ]
 1. **To Encourage Innovation and Creativity:** The primary rationale is to stimulate and promote human creativity. By providing exclusive rights, IPR gives authors, artists, and inventors a financial incentive to create new works and develop new technologies.
 2. **To Provide Economic Incentives:** It allows creators to realize profits from their endeavors. Without the ability to protect their work from being copied and sold by others, there would be little motivation to invest time, money, and effort.
 - **Example:** The global success of the *Harry Potter* series by J.K. Rowling was possible because copyright law protected her books from unauthorized reproduction. This allowed her and her publishers to profit and reinvest in creating more content (books, movies, merchandise), turning the initial creative work into a massive economic enterprise.

3. **To Facilitate Economic Growth:** A strong IPR regime fosters an environment of innovation, which leads to industrial and economic growth. It helps companies protect their market share and recover investments made in research and development (R&D). For example, pharmaceutical companies invest billions in developing new drugs, and patents allow them to recover these costs.

4. **To Protect Consumers:** Trademarks, in particular, help consumers identify the source and quality of goods and services, preventing confusion and deception in the marketplace.

- **The Balancing Act of IPR** [PYQ]

- IPR law aims to strike a balance between two conflicting goals:
 - **Rewarding Creators:** Granting creators a temporary monopoly to profit from their work.
 - **Public Interest:** Ensuring that the public has access to creative works and new technologies for the overall benefit and progress of society.
 - This balance is achieved by limiting the duration of IP rights. For example, a patent for a useful invention lasts for 20 years, after which it enters the public domain, and anyone is free to use the invention.
 - **Case Study (The Balancing Act): *Novartis AG v. Union of India & Others (2013)*:** Swiss pharmaceutical company Novartis sought a patent for a new form of its anti-cancer drug, Glivec. The Indian Supreme Court rejected the patent application, ruling that the new form was not a significant enough "invention" over the pre-existing substance to warrant a new patent under Section 3(d) of the Indian Patents Act. This case highlights the balance India strikes between rewarding pharmaceutical innovation and ensuring public access to affordable medicines.
- **Case Study: *Mazer v. Stein, 347 U.S. 201 (1954)***
 - **Facts:** Partners created china statuettes and obtained copyright registrations. Another company copied the statuettes and used them as bases for table lamps. The original creators sued for copyright infringement.
 - **Holding:** The court held that the copyrights were valid. It affirmed the economic philosophy that "encouragement of individual effort by personal gain is the best way to promote the public welfare through the talents of authors and inventors." This case illustrates the core rationale of IPR—protecting individual creators to benefit the public good.

Topic 3: Types of Intellectual Property

Intellectual property is generally categorized into four main fields.

(A) Trademarks and Service Marks

- **Definition:** A trademark is any word, name, symbol, device, or a combination of these, used to identify and distinguish the goods or services of one seller from those of others and to indicate their source. A *service mark* is the same but for services instead of goods (e.g., STARBUCKS® for retail services).

- **Significance in Commerce:** [PYQ] Trademarks are crucial commercial assets. They act as a guarantee of quality and consistency, build consumer trust and goodwill, and form the foundation of a brand's identity and marketing efforts.
- **What is Protectable:** Words (KODAK), slogans (THE KING OF BEERS), designs (Nike's "swoosh"), and even sounds (the Pillsbury Doughboy's giggle).
 - **Example:** The distinctive apple logo of Apple Inc., the name "Amul" for dairy products in India, and the tagline "Just Do It" for Nike are all powerful trademarks.
- **Protection:** Rights are created from the first public use of the mark. Registration is not mandatory but offers significant advantages, like the right to sue in federal court.
- **Duration:** Can last indefinitely as long as the mark is in continuous use and renewed properly.

(B) Copyright

- **Definition:** Copyright is a legal right that grants the creator of an original work exclusive rights for its use and distribution.
- **Significance:** [PYQ] It protects the expression of ideas and rewards authors and artists, fostering a rich cultural and literary environment. It is the backbone of creative industries like publishing, music, and film.
- **What is Protectable:** Original works of authorship fixed in a tangible form, including literary works (books), musical works (songs), dramatic works, artistic works (paintings, sculptures), and computer software.
 - **Example:** The lyrics and music of the song "Jai Ho" by A.R. Rahman, the source code for the UPI payment interface, and the architectural design of the Lotus Temple in Delhi are all protected by copyright.
- **Not Protectable:** Ideas, facts, titles, names, short phrases, or lists of ingredients are not protected by copyright.
- **Case Study: *R.G. Anand v. Delux Films (1978)*:** In this landmark Indian case, the Supreme Court held that copyright does not protect a mere idea, but only its expression. A film producer sued the makers of another film, alleging that his play's plot had been copied. The court ruled that while the core themes were similar, the expression and presentation were different, and therefore there was no infringement. This case established the critical "idea-expression dichotomy" in Indian copyright law.
- **Protection:** Protection exists automatically from the moment the work is created and fixed in a tangible medium. Registration is not required but is necessary to file an infringement lawsuit.
- **Duration:** Generally, for the life of the author plus an additional 70 years. (In India, it is the life of the author plus 60 years).

(C) Patents

- **Definition:** A patent is an exclusive right granted for an invention, which is a product or a process that provides a new way of doing something or offers a new technical solution to a problem.

- **What is Protectable:** New, useful, and non-obvious inventions. There are three main types:
 1. **Utility Patents:** For useful processes, machines, articles of manufacture, or compositions of matter (e.g., a new drug, a machine).
 - **Example:** A patent for the functionality of the Swachh Bharat Mission's twin-pit pour-flush toilet technology, which is a cost-effective and sustainable sanitation solution.
 2. **Design Patents:** For new, original, and ornamental designs for an article of manufacture (e.g., the design of a chair, the shape of a bottle).
 - **Example:** The unique, contoured shape of the Coca-Cola bottle is a classic example of a design patent.
 3. **Plant Patents:** For new and distinct asexually reproduced plant varieties.
- **Protection:** Rights exist only after a patent is granted by the government's patent office (e.g., USPTO in the US, IPO in India).
- **Duration:** Generally 20 years from the filing date of the application for utility and plant patents.

(D) Trade Secrets

- **Definition:** A trade secret consists of any valuable commercial information that provides a business with a competitive edge and is not generally known.
- **What is Protectable:** Formulas (Coca-Cola recipe), practices, processes, designs, marketing plans, or customer lists.
 - **Example:** The search algorithm used by Google is one of the most valuable trade secrets in the world. Similarly, the specific manufacturing process for a specialized alloy used by a company like Tata Steel could be a trade secret.
- **Protection:** There is no registration system. Protection is derived from keeping the information secret through reasonable efforts, such as using confidentiality and non-disclosure agreements (NDAs).
- **Duration:** Can last indefinitely as long as the information remains confidential and continues to provide a competitive advantage.

Tabular Difference: Comparing Major Types of IPR [PYQ]

Feature	Trademarks	Copyrights	Patents	Trade Secrets
What it Protects	Brand identifiers (names, logos, slogans) that indicate the source of goods/services.	Original works of authorship (literary, artistic, musical works, software).	New, useful, and non-obvious inventions and ornamental designs.	Confidential business information that provides a competitive advantage.

Feature	Trademarks	Copyrights	Patents	Trade Secrets
Is "Copyright" same as "Trademark"? [PYQ]	No. A trademark protects a brand name/logo. Copyright protects an artistic or literary work. A company's logo <i>design</i> can be copyrighted, while its use as a brand identifier is protected by trademark.			
How Protection is Secured	Rights begin with use in commerce. Registration with the government provides stronger protection.	Protection is automatic upon creation of the work in a fixed form. Registration provides additional benefits.	A formal application must be filed with and granted by a national patent office.	Through reasonable efforts to maintain secrecy (e.g., NDAs, restricted access). No registration.
Duration of Protection	Potentially forever, as long as the mark is used in commerce and renewed.	Life of the author + 60 years (in India).	20 years from the patent application filing date.	Potentially forever, as long as the information remains secret.
Governing Law in India	The Trade Marks Act, 1999	The Copyright Act, 1957	The Patents Act, 1970	No single statute; protected under contract law and common law principles.

Topic 4: International Organizations, Agencies, and Treaties

- **World Intellectual Property Organization (WIPO):** A specialized agency of the United Nations. Its purpose is to promote the protection of intellectual property throughout the world. WIPO administers 24 international treaties, including the Paris Convention and the PCT.
- **World Trade Organization (WTO):** An international organization that deals with the rules of trade between nations. It administers the TRIPS agreement, which sets minimum standards for the protection of most forms of IPR.
- **International Treaties:**
 - **Paris Convention (1883):** One of the first IP treaties. It covers patents, trademarks, and industrial designs. Its key principles are:
 1. **National Treatment:** Each member country must grant the same protection to nationals of other member countries as it grants to its own nationals.

2. **Right of Priority:** Provides a "priority period" (12 months for patents, 6 months for trademarks) to file in other member countries, with the later applications being treated as if they were filed on the same day as the first application.

- **Example:** An Indian startup invents a new water purification device and files a patent in India on January 1, 2024. Under the Paris Convention, they have until January 1, 2025, to file patent applications in the USA, Japan, and Germany, and those applications will be treated as if they were filed on the original Indian date.

- **Berne Convention (1886):** Deals with the protection of literary and artistic works (copyright). It also establishes the principles of national treatment and automatic protection (copyright exists without any formal registration).

- **Patent Cooperation Treaty (PCT):** A system that facilitates the filing of patent applications in multiple countries. An inventor can file a single "international" patent application, which delays the need to file separate national applications for up to 30 months, giving the applicant time to assess the invention's commercial viability. **[FIG]**

- **TRIPS (Trade-Related Aspects of Intellectual Property Rights) Agreement:** An international legal agreement between all member nations of the WTO. It sets down minimum standards for IPR regulation. It introduced IP law into the international trading system for the first time.

- **Example:** Because of the TRIPS agreement, a software program developed in the USA is automatically protected by copyright law in India (a fellow WTO member) without needing separate registration, based on the principle of national treatment.

Topic 5: IPR in India: Genesis, Development, and Impact **[PYQ]**

- **Genesis and Development:**

- India has a long-standing legal framework for IPR, with its modern laws rooted in the British colonial system.
- **Patents:** The first patent law was the Act of 1856. The current framework is governed by **The Patents Act, 1970**, which has been significantly amended, particularly in 1999, 2002, and 2005, to align with the TRIPS Agreement. The 2005 amendment was crucial as it reintroduced product patents for pharmaceuticals and agrochemicals.
- **Trademarks:** The first trademark law was the Trade Marks Act, 1940. The current law is **The Trade Marks Act, 1999**, which expanded the definition of a mark to include shapes and combinations of colors.
- **Copyrights:** The first copyright law was enacted in 1847. The current law is **The Copyright Act, 1957**, which has been amended to cover software, satellite broadcasting, and digital rights.
- **Administration:** The Office of the Controller General of Patents, Designs and Trade Marks (CGPDTM), under the Department for Promotion of Industry and Internal Trade (DPIIT), is the primary body for administering IPR in India.

- **Impact of IPR in India:**

- **On Development:** A robust IPR system is seen as essential for encouraging foreign direct investment (FDI) and fostering domestic innovation. It helps Indian companies compete globally.

- **On Health:** The patent regime, especially for pharmaceuticals, is a critical issue. While patent protection encourages R&D for new drugs, it can also lead to high prices. India uses provisions like **compulsory licensing** (under Section 84 of the Patents Act) to allow generic drug production in cases of national emergency or unaffordable pricing, balancing public health needs with patent rights.
 - **Case Study: *Natco Pharma Ltd. v. Bayer Corporation (2012)*:** India's Patent Office granted its first-ever compulsory license to the Indian generic drug manufacturer Natco Pharma. It allowed Natco to produce and sell a generic version of Bayer's patented cancer drug, Sorafenib Tosylate (Nexavar), at a fraction of the cost. The decision was made on the grounds that Bayer had not made the drug available to the public at a reasonably affordable price. This is a prime example of India using TRIPS flexibilities to prioritize public health.
 - **On Agriculture and Genetic Resources:** To protect the interests of farmers and traditional communities, India enacted specific legislation:
 1. **The Protection of Plant Varieties and Farmers' Rights (PPV&FR) Act, 2001:** This unique law protects not only the rights of plant breeders but also explicitly recognizes and protects the rights of farmers to save, use, sow, re-sow, exchange, and share farm produce, including seeds of a protected variety. [PYQ]
 2. **Traditional Knowledge Digital Library (TKDL):** India has created the TKDL, a database of traditional knowledge (especially in medicine and wellness), to prevent "bio-piracy"—the patenting of traditional knowledge by foreign entities without acknowledging or compensating the source communities.
 - **Case Study: The Turmeric Patent Case (1997):** The USPTO granted a patent on the healing properties of turmeric. The Indian Council of Scientific and Industrial Research (CSIR) challenged this, providing ancient Sanskrit texts as evidence that this was traditional knowledge, not a new invention. The patent was revoked. This case was a major catalyst for the creation of the TKDL.
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Topic 6: Patents in Detail

- **Definition:** A patent is a statutory right granted by the government to an inventor for a limited period, in exchange for the full disclosure of their invention. The right excludes others from making, using, selling, or importing the patented invention without the owner's consent.
- **Legal Requirements for Patents:** For an invention to be patentable, it must meet three key legal criteria:
 1. **Novelty:** The invention must be new and not have been published, used, or known in the public domain before the date of filing the patent application.
 2. **Non-Obviousness (Inventive Step):** The invention must not be obvious to a person having ordinary skill in the art (the specific field of technology). It must represent a significant technical advancement over existing knowledge.
 3. **Utility (Industrial Applicability):** The invention must be useful and capable of being made or used in some kind of industry. It cannot be a mere abstract idea.

- **Indian Aspect:** In India, **Section 3 of The Patents Act, 1970** provides a list of "what are not inventions," including frivolous inventions, methods of agriculture, and discoveries of scientific principles, which are explicitly excluded from patentability.
- **Case Study: *Bishwanath Prasad Radhey Shyam v. Hindustan Metal Industries (1979)*:** The Supreme Court of India laid down the definitive test for non-obviousness. It held that for an invention to be patentable, it must involve an inventive step and not be a mere "workshop improvement." This case established the standard that an invention must be a tangible improvement on the prior art and not just something that any skilled person in that field could have easily come up with.
- **Kind of Inventions Protected:** [PYQ]
 - **Product Patent:** A patent that covers the final product itself. It prevents others from making, using, or selling the product, regardless of the process used to create it. (e.g., the patent for the Aspirin molecule).
 - **Process Patent:** A patent that covers a method or process of making something. It does not protect the final product, meaning someone else could create the same product using a different process without infringing.
 - **Example:** Imagine a company invents a new type of biodegradable plastic (Product A) using a specific chemical process (Process X). If they get a **product patent** on Plastic A, no one else can make or sell Plastic A, even if they use a different process (Process Y). If they only get a **process patent** on Process X, another company is free to make and sell the exact same Plastic A, as long as they use their own different Process Y.
 - **Indian Context:** Before 2005, India only granted process patents for food, drugs, and chemicals. The 2005 amendment to the Patents Act reintroduced product patents in these fields to comply with TRIPS.
- **Double Patenting:**
 - This principle prohibits the granting of more than one patent for the same invention to the same applicant.
 - The goal is to prevent an inventor from extending their monopoly period by making minor, insignificant changes to an existing invention and filing a new application.
 - Inventors can overcome a rejection based on double patenting by filing a **"terminal disclaimer,"** which ensures that the second patent will expire on the same date as the first one.

Topic 7: The Patent Lifecycle: From Idea to Grant [PYQ]

This entire section covers the "process of patent filing." [PYQ]

A flowchart showing the key stages: Idea Conception -> Prior Art Search -> Drafting Application (Specification & Claims) -> Filing (Provisional/Complete) -> Examination -> Grant/Rejection -> Maintenance.

1. Patent Searching:

- **Purpose:** Before filing, a "prior art" search is conducted to determine if the invention is novel and non-obvious. It helps assess the chances of getting a patent and helps in drafting the application claims more effectively.
- **Methods:** Includes keyword searching and classification searching in patent databases (like IPO's InPASS, USPTO, Google Patents) and non-patent literature.

2. Drafting and Filing a Patent Application: [FIG]

- A patent application is a legal document that must be drafted carefully. It consists of several parts.
- **Types of Patent Applications:**
 - **Provisional Application:** An initial, less formal application filed to secure a "priority date." It gives the inventor 12 months to file a complete application. It is less expensive and allows the inventor to use the term "patent pending."
 - **Example:** A university researcher has a breakthrough for a new battery technology. To secure her invention date immediately before a competitor can, she files a provisional application with the Indian Patent Office. This gives her 12 months to conduct further tests and find funding before filing the detailed complete application, all while being able to claim "patent pending."
 - **Non-Provisional (Complete) Application:** A formal application that must be filed within 12 months of the provisional one. It is examined by the patent office.
 - **Convention Application:** Filed in a convention country (member of the Paris Convention) claiming a priority date from an application first filed in another member country.
 - **PCT-International Application:** An application filed under the Patent Cooperation Treaty to seek protection in multiple countries simultaneously.

3. Patent Specification and Claims:

WHAT IS CLAIMED IS:

1. An improved baseball bat comprising: a tubular core of rigid materials having a first section to support a handle and a second section to support a striking portion, said second section having a diameter relatively larger than that of said first section; a covering member of semirigid materials having a handle portion embracing said first section of said core and a striking portion embracing said second section of said core; wherein said first section and second section of said core are respectively made and connected by a connecting means; and wherein said connecting means is a ring-like device inserted tightly into one end of said second section of said core.
2. The baseball bat as claimed in claim 1, wherein said core is made of a material selected from a group consisting of composite materials, metals, and plastics.
3. The baseball bat as claimed in claim 2, wherein said core is made of fiber-reinforced plastic materials.
4. The baseball bat as claimed in claim 1, wherein said handle portion of said covering member is made of foam plastic materials and said striking portion of said cover is made of wood materials.
5. The baseball bat as claimed in claim 1, wherein the end of said second section of said core has an inner shoulder to complementedly connect with an outer shoulder formed on said ring-like device.
6. The baseball bat as claimed in claim 1, wherein said second section of said core is taperedly formed.
7. The baseball bat as claimed in claim 1, further comprising a protecting layer made of fiber-reinforced material and wrapping around the surface of said striking portion of said covering member.
8. The baseball bat as claimed in claim 1, further comprising at least one shock-absorbing device respectively and tightly inserted inside said core.
9. The baseball bat as claimed in claim 1, further comprising at least one weight device respectively and tightly inserted inside said core.
10. The baseball bat as claimed in claim 2, wherein the end of said second section of said core has an inner shoulder to complementedly connect with an outer shoulder formed on said ring-like device.
11. The baseball bat as claimed in claim 3, wherein the end of said second section of said core has an inner shoulder to complementedly connect with an outer shoulder formed on said ring-like device.
12. The baseball bat as claimed in claim 4, wherein the end of said second section of said core has an inner shoulder to complementedly connect with an outer shoulder formed on said ring-like device.

The example of the baseball bat from Exhibit 18-1 is an excellent illustration of claim structure.

- The **Specification** is the core of the application. It's a detailed written description of the invention. Its parts include:
 - **Title:** A short, specific title for the invention.
 - **Background:** Discusses the existing prior art and the problem the invention solves.
 - **Summary:** A brief overview of the invention.
 - **Detailed Description:** Explains the invention in full, clear, and exact terms, enabling a person skilled in the art to make and use it. It must disclose the "best mode" of carrying out the invention.
 - **Drawings:** Visual representations of the invention where necessary.
 - **Abstract:** A concise summary (usually under 150 words) of the technical disclosure.
- The **Claims** are the most critical part of the application. They define the legal boundaries of the invention and what is protected.
 - They are structured as single sentences.
 - **Independent Claims:** Stand-alone claims that define the invention in its broadest sense.

- **Dependent Claims:** Narrow the scope of an independent claim and must refer back to it.

Topic 8: Management of IP Assets and IP Portfolio

- **IP Audit:** An IP audit is a systematic review of the intellectual property owned, used, or acquired by a business.
- **Purpose:**
 1. **Identify Assets:** To identify all the IP assets a company owns, including unregistered ones.
 2. **Assess Strength:** To evaluate the strength and validity of the IP rights.
 3. **Find Opportunities:** To find ways to commercially exploit the IP, such as through licensing or sale.
 4. **Manage Risks:** To identify potential infringement risks (both by the company and against the company) and ensure proper protection measures are in place.
- **IP Portfolio Management:** Refers to the strategic management of a company's collection of IP assets (patents, trademarks, etc.) to maximize their value and align them with the business's goals.
 - **Example:** A company like IBM actively manages its vast patent portfolio. It not only uses patents to protect its own products but also licenses thousands of patents to other companies, creating a significant revenue stream from its IP assets. It also uses its portfolio defensively to enter into cross-licensing agreements, preventing lawsuits.
 - **Indian Example:** A company like Cipla Ltd. strategically manages its IP portfolio by focusing on process innovation, filing patents for new manufacturing methods of existing drugs. This allows them to produce generic medicines cost-effectively while also building a valuable portfolio of process patents that can be defended or licensed.

Intellectual Property Audit Questionnaire

Identified below is a list of subjects to be covered in connection with our review of the intellectual property rights of your company (the "Company"). Please gather any materials and documents relevant to the subjects listed below so they can be reviewed. If no materials or documents exist with respect to a particular subject, please confirm that in writing next to the relevant question.

For all relevant questions, give the name of the person who assisted in the design, development, or implementation of any intellectual property rights; describe the nature of the relationship between the person and the Company (for example, employee, independent contractor, and so forth); and indicate whether the person signed any confidentiality or nondisclosure agreements with the Company.

A. General

1. Has the Company ever acquired another entity or the business or assets of another entity or person? (This party may have owned intellectual property that is now owned by the Company.)
2. Has the Company ever sold any assets or business to another entity or person?
3. Is the Company engaged in the development or design of any useful products or parts for useful products?
4. Is the Company engaged in the development, design, or modification of computer software?
5. Are there any individuals who may have developed or designed products or software for the Company who have left employment with the Company? If so, indicate whether each such person signed a confidentiality, nondisclosure, or employment agreement with the Company.
6. Does the Company have a website or are there links from other parties' sites to the Company's site? If so, provide documents relating to the registration of the Company's domain names and website addresses.
7. Does the Company use a docketing system or calendar to provide reminders of due dates relating to any of its intellectual property?
8. Has the Company ever conducted an intellectual property audit, or does it maintain a list of its IP assets? If so, please attach a copy.
9. Has the Company changed its name or address within the past 10 years? If so, records on file with the U.S. Patent and Trademark Office (USPTO) and Copyright Office may need to be updated to reflect such.

B. Trademarks and Service Marks

1. Does the Company use any trademarks, service marks, logos, slogans, trade dress, or designs (collectively "Marks") in connection with the offer and sale of its products or services? These Marks may have been displayed on products, labels, packaging, letterhead, business cards, in advertisements, brochures, or other marketing materials, including a website.
2. Has the Company ever applied for registration of any Marks with the USPTO or any state trademark agencies?
3. Has the Company ever allowed another party (such as an employee, client, vendor, or competitor) to use any of the Company's Marks?
4. Does the Company use any Marks that are owned by any third party? Review Company marketing materials, website, and other written documents to determine whether the Company displays or uses Marks belonging to another.

C. Copyrights

1. What written materials does the Company use to advertise its products and services? These may be written materials, scripts or copy for radio or television advertisements, or website materials.

Were these developed by Company employees or by independent contractors working for the Company? What agreements exist relating to the development of such materials?

2. What written materials does the Company use internally, such as employee handbooks, training materials, company policies, manuals, training or other videos, audios, or modules, relating to the way the Company conducts its business?
3. Do Company employees prepare written materials or electronic materials (such as PowerPoint slides) when presentations are made within the Company and outside the Company? If so, describe.
4. Do Company employees submit articles for publication to any journals, periodicals, or other publications? If so, describe.
5. Has the Company ever applied for registration of any copyrights with the U.S. Copyright Office?
6. Are articles from periodicals, magazines, trade journals, and other related written materials photocopied for distribution within the Company?
7. What policies exist regarding reproduction of books, articles, journals, and other materials that may be subject to copyright?
8. Is any music piped in through the Company's offices (whether through the use of CDs or music being simultaneously transmitted by a radio station)?
9. Is music played when callers to the Company are placed on hold?

D. Patents

1. Has the Company or its employees ever invented any useful article, product, method, process, or software? If so, do any inventor or laboratory notebooks exist that document the development of the invention? Does the Company have any present plans for any such inventions?
2. Has the Company ever made any improvements to another party's useful article, product, or invention?
3. Has the Company ever engaged in the reverse engineering or decompilation of another company's product or software?
4. Has the Company ever applied with the USPTO for issuance of any patent?
5. Does the Company mark all patented inventions with a patent notice?
6. What process does the Company use to ensure all notices of patent are removed when the patent has expired?

Topic 9: Layers of the International Patent System

An inventor seeking patent protection in multiple countries has three primary pathways or "layers":

1. The National Route:

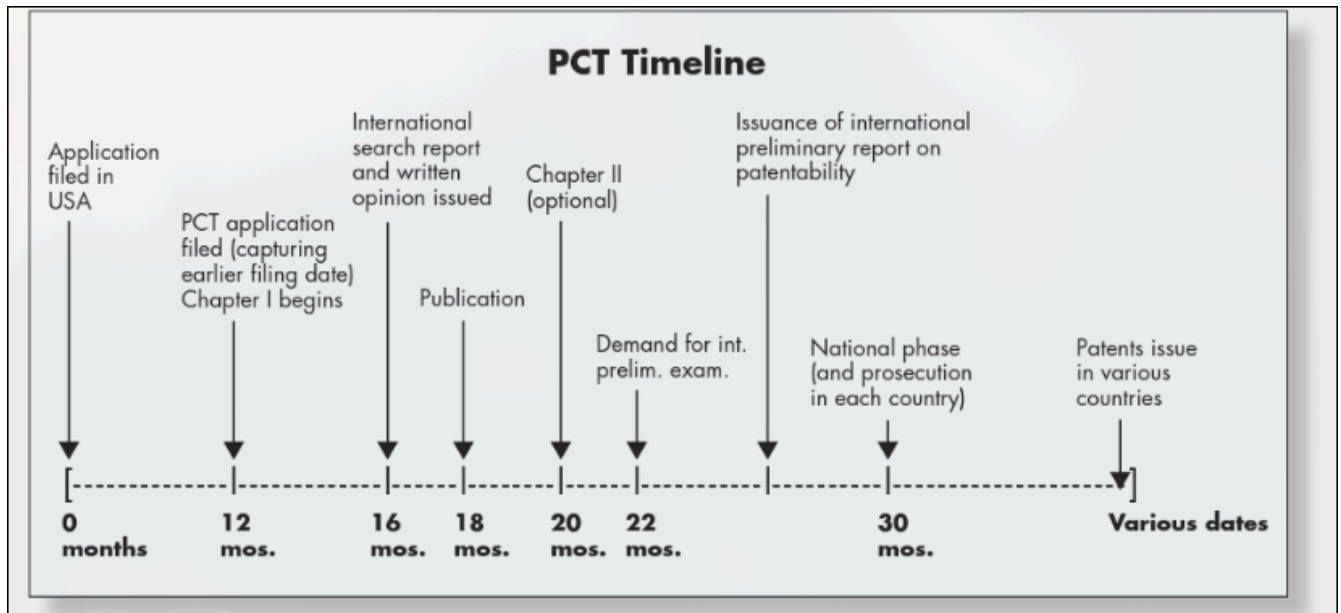
- The most direct route. The applicant files separate patent applications directly in the national patent office of each country where protection is sought.
- **Advantage:** Straightforward for a small number of countries.
- **Disadvantage:** Can be very expensive, complex, and time-consuming due to different laws, languages, and procedures in each country.
- **Example:** A small Indian company has developed a specialized agricultural tool that is only relevant for the farming conditions in India and neighboring Sri Lanka. Instead of using the complex PCT route, it would be more cost-effective for them to file two separate national patent applications directly with the Indian Patent Office and the National Intellectual Property Office of Sri Lanka.

2. The Regional Route:

- The applicant files a single application at a regional patent office, which covers multiple member countries.

- **Example:** The **European Patent Office (EPO)** allows an applicant to file one application in one language to seek patent protection in over 40 European countries. Once the European patent is granted, it must be "validated" in each individual country to be enforceable there. Other examples include the African Regional Intellectual Property Organization (ARIPO) and the Eurasian Patent Organization (EAPO).
- **Advantage:** Streamlines the application and examination process for a specific region.

3. The International Route (PCT System):



The PCT Timeline (Exhibit 21-1) is a key visual for this topic.

- The applicant files one "international" application under the **Patent Cooperation Treaty (PCT)**.
- This route does not result in an "international patent." Instead, it provides a centralized filing and searching process.
- **Process:**
 - **International Phase:** A single application is filed, an international search is performed, and a written opinion on patentability is issued. This phase lasts for about 30 months from the priority date.
 - **National Phase:** After the international phase, the applicant must then "enter the national phase" and prosecute the application before the national/regional patent offices of the specific countries they choose.
- **Advantage:** It provides the applicant with **30 months** (instead of the 12 months under the Paris Convention) before incurring the major costs of national filing, translations, and fees. This extra time allows for market assessment and strategic planning. **[FIG]**